



CHAPTER 36.

An Act to extend, in relation to persons in the Isle of Man, the powers which may be exercised by His Majesty under the Emergency Powers (Defence) Acts, 1939 and 1940. [5th August 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The powers conferred on His Majesty by the Emergency Powers (Defence) Acts, 1939 and 1940, as extended to the Isle of Man under subsection (1) of section four of the Emergency Powers (Defence) Act, 1939, to make by Order in Council such Defence Regulations as appear to him to be necessary or expedient for securing the public safety, the defence of the realm, the maintenance of public order and the efficient prosecution of any war in which His Majesty may be engaged, and for maintaining supplies and services essential to the life of the community, shall include power to make provision for requiring persons in the Isle of Man to undertake national service in the United Kingdom, in civil defence, in industry or otherwise, whether under the Crown or not: Persons in the Isle of Man liable to service in the United Kingdom. 2 & 3 Geo. 6. c. 62.

Provided that Defence Regulations made by virtue of this Act—

- (a) shall, as respects their application to persons who were on the twenty-fourth day of August, nineteen hundred and thirty-nine, ordinarily resident in the Isle of Man, be of no effect unless and until approved by a resolution of Tynwald;

4 & 5 Geo. 6.
c. 15.

- (b) shall not require any person to undertake service in the armed forces of the Crown or in or with a civil defence force within the meaning of the National Service Act, 1941.

(2) For the purposes of this Act, a person who was resident in the Isle of Man on the said twenty-fourth day of August shall be deemed to have been then ordinarily resident there unless at that date he had been resident in the Isle of Man for less than two years or was residing there only for the purpose of attending a course of education, or the circumstances of his residence in the Isle of Man were otherwise such as to show that he was residing there for a temporary purpose only.

(3) Nothing in this Act shall be construed as limiting the operation of any enactment in force in the United Kingdom as respects persons who are in the United Kingdom for the purpose of complying with a Defence Regulation made by virtue of this Act.

Short title.

2. This Act may be cited as the Emergency Powers (Isle of Man Defence) Act, 1943.

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